

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 20
JUDICIAL OFFICER: MELISSA O'CONNELL
HEARING DATE: 08/13/2026

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter.
(Local Rule 3.43(2).)

Note: In order to minimize the risk of miscommunication, parties are to provide an EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED. Dept. 20's email address is: dept20@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 20 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling must be attached to the proposed order when submitted to the Court for issuance of the order.

Discovery Law & Motion

1. 9:00 AM CASE NUMBER: C25-02614
CASE NAME: D&A TRANS, INC., VS. BMW OF NORTH AMERICA, LLC,
COMPEL PLAINTIFF D&A TRANS, INC.'S FURTHER RESPONSES TO REQUEST FOR ADMISSION, SET ONE
FILED BY: BMW OF NORTH AMERICA, LLC,
TENTATIVE RULING:

Defendant's motion to compel further responses to requests for admission, set one, Request No. 18, 19, and 21-25 is GRANTED. Plaintiff is to serve objection-free code-compliant responses by September 4, 2026. Defendant's request for sanctions is also GRANTED; however the court reduces sanctions to \$950. Plaintiff is to pay Defendant sanctions by September 4, 2026.

"Most of the other discovery procedures are aimed primarily at assisting counsel to prepare for trial. Requests for admissions, on the other hand, are primarily aimed at setting at rest a triable issue so that it will not have to be tried. Thus, such requests, in a most definite manner, are aimed at expediting the trial." (*Cembrook v. Superior Court of San Francisco* (1961) 56 Cal.

2d 423, 429, see also C.C.P. §2033.010.)

Here, Plaintiff provided the same objections and no substantive responses to Defendant's Requests for Admission Nos. 18-19 and 21-25. Request Nos. 18, 19, 21, 22, 23, 24 and 25 appear to all relate to Plaintiff's identity as a business and the particular use of the subject vehicle that is the focus of this action. These issues may have an impact on whether any alleged claims against Defendant fall within or beyond the protections of the Song-Beverly Act. As such, they are relevant. Furthermore, the court does not find any of the requests to be vague, ambiguous, or calling for a legal conclusion, rather they appear to be straightforward questions for simple facts such as the number of vehicles registered in Plaintiff's name, whether Plaintiff had a "DBA" and what name the vehicles were registered under. Unlike Defendant's requests for production of numerous documents related to all vehicles registered to Plaintiff that are not the subject vehicle, here, Defendant's request is merely asking Plaintiff to admit or deny whether they have other vehicles registered in their name to establish the nature of Plaintiff's identity. Furthermore, Plaintiff provides no support for their assertion that this information is protected by any privilege or immunity.

As to Request Nos. 24 and 25, Plaintiff provides conflicting information in their Opposition indicating that prior to the hearing they intend to serve supplemental responses to Requests for Admission Nos. 24 through 25 and yet a page later state they did serve the supplemental responses prior to August 13, 2026; this court is confused. (Plaintiff Memorandum of Points and Authorities in Opposition, pp. 2-3.) Additionally, the court is not persuaded by Plaintiff's position that because Defendant "deposed Plaintiff on April 8, 2026, and had a full opportunity to examine Plaintiff regarding the subsequent discovery these admissions address. Defendant has therefore already obtained the information it seeks directly from Plaintiff, suffers no prejudice, and no court intervention is warranted." (*Id.* p. 3.)

It follows that the selection of the method of discovery to be utilized is to be made by the party seeking discovery. It cannot be dictated by the opposing party. (See *Pember v. Superior Court* (1966) 240 Cal.App.2d 888, 889-890; *Darbee v. Superior Court* (1962) 208 Cal.App.2d 680, 686-687.) Moreover, the choice is subject to a trial court's control only to the extent consistent with express statutory limitations. (*Greyhound Corp. v. Superior Court, supra*, 56 Cal.2d at p. 383.) A party is permitted to use multiple methods of obtaining discovery and the fact that information was disclosed under one method is not, standing alone, a proper basis for refusing to provide discovery under another method. (*Coy v. Superior Court* (1962) 58 Cal.2d 210, 218-219.)

Irvington-Moore, Inc. v. Superior Court (1993) 14 Cal. App. 4th 733, 739.

Moreover, with respect to Plaintiff's assertion that Defendant did not engage in reasonable meet and confer efforts, this court is also not persuaded. However, this court would observe that both sides could have made efforts to call each other in a good faith effort to resolve these

discovery disputes and instead relied on simply attempting to communicate via email. First, Defendant's initial letter in February 2026 only referenced issues with Request Nos. 18, 19, 24 and 25, not 21-23, as they now dispute. Second, while Defendant sent three intervening emails with no responses, they do not appear to have ever attempted to contact Plaintiff by phone. Finally, when Plaintiff finally responded March 5, Defendant promptly responded just one day later with availability dates and times. Plaintiff asserts they did not see that follow up email, yet after discovering it, Plaintiff appears to have done no follow up and asserts that Defendant was to blame. There must be a "serious effort at negotiation and informal resolution" and "the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate." (*Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431, 1438-1439.) (See also *Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1293.)

Here, the court finds sanctions appropriate. Failing to respond to an authorized method of discovery is a misuse of the discovery process subject to monetary sanctions. (Code Civ. Proc., §2023.010, subd. (d).) However, the requested amount is unreasonable and the amount is reduced.

Defendant's motion to compel further responses to requests for admission, set one, Request Nos. 18, 19, and 21-25 is GRANTED. Plaintiff is to serve objection-free code-compliant responses by September 4, 2026. Defendant's request for sanctions is also GRANTED; however, the court reduces sanctions to \$950. Plaintiff is to pay Defendant sanctions by September 4, 2026.

2. 9:00 AM CASE NUMBER: C25-02614
CASE NAME: D&A TRANS, INC., VS. BMW OF NORTH AMERICA, LLC,
COMPEL PLAINTIFF D&A TRANS, INC.'S FURTHER RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE
FILED BY: BMW OF NORTH AMERICA, LLC,
TENTATIVE RULING:

Defendant's Motion to Compel further responses to request for production of documents is GRANTED IN PART AND DENIED IN PART. Defendant's request for sanctions is GRANTED however, the court finds the request unreasonable under the circumstances and has reduced the amount.

Defendant served on Plaintiff 33 Requests for Production of documents. Defendant asserts that Plaintiff has failed to meet and confer in good faith, has not provided verifications for responses previously served, has not provided the documents Plaintiff referenced in their responses and that Plaintiff has not served appropriate supplemental responses to Requests for Production of Documents Nos. 23, 24, 29, 30, 31, and 32.

Defendant maintains that on January 23, 2026, Plaintiff served unverified responses to Requests for Production of Documents, Set One. "Unsworn responses are tantamount to no responses at all." (*Appleton v. Superior Court* (1988) 206 Cal.App.3d 632, 635-636.)

To the extent Plaintiff has failed to subsequently provide Defendant with a statement of verification for their responses, the court ORDERS Plaintiff to do so by August 21, 2026. Furthermore, Defendant also maintains that Plaintiff has not provided any of the documents referenced in Plaintiff's responses. If this is also accurate, Plaintiff is ORDERED to provide the referenced documents to Defendant by August 21, 2026.

As to the specific Requests that are the subject of Defendant's Motion to Compel, the court takes them in turn:

Requests No. 23 and 24: As to these requests, Plaintiff responded with objections, but also substantive responses that "After a diligent search and reasonable inquiry, Plaintiff is unable to comply with this request because no such documents ever existed." The court finds these to be code-compliant responses. (See Cal. Code of Civ. Procedure § 2031.230.) Thus, Defendant's request for further responses is DENIED.

However, the court observes that Plaintiff maintains they "intend[] to serve supplemental responses to Requests for Production of Documents No. 23... prior to the hearing on this motion" and would recommend they do so to maintain good faith discovery practices. (Declaration of Daniel Gopstein in Opposition to Motion to Compel Further Responses to Request for Production of Documents, p. 2.)

Request Nos. 29 and 30: Notwithstanding objections, Plaintiff appears to have provided responsive documents to Request Nos. 1, 2, 4, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17, 18, 21, 29, 30. Defendant, however, maintains that the documents referenced in these responses were not actually provided by Plaintiff and the documents referenced in requests nos. 29 and 30 are not substantively responsive and therefore a motion to compel further production of documents is appropriate.

Request No. 29 sought all documents identifying the legal name, form of entity, and any fictitious business names or DBAs used by Plaintiff at any time during the last ten years. Plaintiff responded with reference to Exhibits A and C with specified titles but also Exhibit F, "Plaintiff's Miscellaneous documents." The court does not find reference to Exhibit F to be code compliant.

Request No. 30 sought all documents reflecting the actual use of the subject vehicle, including mileage logs, trip records, dispatch records, GPS records, or similar documents. While Plaintiff provided objections they also responded substantively with reference to two documents, Exhibits A and B, that were identified with specificity. The court finds Plaintiff provided a code-compliant response, on the assumption that these documents were in fact

provided to Defendant at the time of the response.

A party's belief that a response is *not good enough* is not a basis for issuing a motion to compel. (See e.g. *Holguin v. Superior Court* (1972) 22 Cal. App. 3d 812, 820 ["Plaintiffs' position in this proceeding is therefore, in effect, that certain matters which defendants have denied are so unquestionably true, that they cannot deny them. It may well be that from their point of view defendants might be better off, in the long run, if instead of denying all the requests outright, they had denied some of them for lack of information or belief. It may also be that after a trial it will appear that plaintiffs are entitled to financial sanctions under subdivision (c), section 2034 of the Code of Civil Procedure. We do not see, however, how any court can force a litigant to admit any particular fact if he is willing to risk a perjury prosecution or financial sanctions."].)

Here, Plaintiff references specific documents they provided in response to Requests Nos. 29 and 30. This court, like in *Holguin*, does not see how it can force Plaintiff to provide better documents than those provided as to Exhibit A, B, and C for the respective requests.

Nonetheless, Plaintiff's reference to "miscellaneous" documents is not code-compliant and further responses are ORDERED for Request No. 29. "The responding party must describe the documents 'in sufficient detail to permit the propounding party to locate and to identify, as readily as the responding party can, the documents from which the answer may be ascertained.'" (California Judges Benchbook: Civil Proceedings—Discovery (Cal CJER 2022, p. 459, citing Cal. Code of Civ. Proc. §2030.230.)

Of note, in their response to Defendant's motion to compel, Plaintiff again maintains that they "intend[] to serve supplemental responses to Requests for Production of Documents Nos. [], 29, and 30 prior to the hearing on this motion." (Declaration of Daniel Gopstein in Opposition to Motion to Compel Further Responses to Request for Production of Documents, p. 2.) However, there is no information before this court that this has happened, and the court would recommend they do so to maintain good faith discovery practices.

Request Nos. 31, 32: These requests respectfully seek all documents identifying every vehicle owned, leased, or operated by Plaintiff during the five (5) years preceding the purchase of the subject vehicle through the present and all vehicle registration documents for each vehicle identified in response to Request No. 31 and all insurance policies, declarations pages, and endorsements covering the subject vehicle and any other vehicles owned or operated by Plaintiff.

Plaintiff raised several objections including the requests are vague, ambiguous, compound, overly broad, and seeking information protected from disclosure by any privilege or immunity. Plaintiff further objects to these Requests on the grounds that they seek premature disclosure of expert witness opinion and to the extent that they exceed the scope of the claims and/or defenses in the action, and therefore, are not relevant, nor calculated to lead to the discovery of

admissible evidence.

The Defendant maintains these requests are relevant to determine Plaintiff's damages. The Court finds that while an extremely low threshold, the relevance of these requests is unsupported.

Accordingly, the court finds Plaintiff's objection valid as to all *other vehicles* and Defendant's request to compel further responses is DENIED. However, to the extent that Request No. 32 seeks documents related to the subject vehicle, Plaintiff is ORDERED to produce the relevant documents.

The court is not persuaded by Plaintiff's position that because Defendant "deposed Plaintiff on April 8, 2026, and had a full opportunity to examine Plaintiff regarding the subsequent discovery these admissions address. Defendant has therefore already obtained the information it seeks directly from Plaintiff, suffers no prejudice, and no court intervention is warranted. (*Id.* p. 3.)

It follows that the selection of the method of discovery to be utilized is to be made by the party seeking discovery. It cannot be dictated by the opposing party. (See *Pember v. Superior Court* (1966) 240 Cal.App.2d 888, 889-890; *Darbee v. Superior Court* (1962) 208 Cal.App.2d 680, 686-687.) Moreover, the choice is subject to a trial court's control only to the extent consistent with express statutory limitations. (*Greyhound Corp. v. Superior Court, supra*, 56 Cal.2d at p. 383.) A party is permitted to use multiple methods of obtaining discovery and the fact that information was disclosed under one method is not, standing alone, a proper basis for refusing to provide discovery under another method. (*Coy v. Superior Court* (1962) 58 Cal.2d 210, 218-219.)

Irvington-Moore, Inc. v. Superior Court (1993) 14 Cal. App. 4th 733, 739.

Moreover, with respect to Plaintiff's assertion that Defendant did not engage in reasonable meet and confer efforts, this court is also not persuaded. However, this court would observe that both sides could have made efforts to call each other in a good faith effort to resolve these discovery disputes and instead relied on simply attempting to communicate via email. While Defendant sent three intervening emails with no responses, they do not appear to have ever attempted to contact Plaintiff by phone. When Plaintiff finally responded March 5, Defendant promptly responded just one day later with availability dates and times. Plaintiff asserts they did not see that follow up email and even after discovering it, it still appears Plaintiff failed to do any follow up and asserts that Defendant was to blame. There must be a "serious effort at negotiation and informal resolution" and "the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate." (*Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431, 1438-1439; See also *Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1293.)

Here, the court finds sanctions appropriate. (Cal. Code Civ. Proc. §2031.310(h).) However, the requested amount is unreasonable and the amount is reduced.

Plaintiff is ORDERED to provide Defendant with all documents referenced in their original responses to Defendant's request for production as well as a statement of verification for all responses by August 21, 2026, to the extent that they have failed to do so.

Defendant's motion to compel further responses to requests for production of documents, set one, Request Nos. 29 and 32 (only as it relates to the subject vehicle) is GRANTED. Plaintiff is to serve objection-free code-compliant responses by September 4, 2026.

Defendant's motion to compel further responses to requests for production of documents, set one, request nos. 23, 24, 30, 31 and 32 (as it relates to other vehicles) is DENIED.

Defendant's request for sanctions is GRANTED; however, the court reduces sanctions to \$600. Plaintiff is to pay Defendant sanctions by September 4, 2026.